

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV374597	Regional Medical Center of San Jose, et al. v. County of Santa Clara dba Valley Health Plan	Unopposed application for admission <i>pro hac vice</i> of defense counsel is GRANTED. Court will sign proposed Order. No appearance necessary.
LINE 2	22CV398750	Rozo v. Tactical Operations Protective Services LLC, et al. (PAGA)	Order of Examination. Parties to appear.
LINE 3	22CV403855	Cramer v. MGE Underground, Inc. (Class Action)	See Line 3 for tentative ruling.
LINE 4	23CV413336	Marquez v. Newpath Landscape Services, Inc. (Class Action/PAGA)	See Line 4 for tentative ruling.
LINE 5	24CV430462	Sarkis v. Miltenyi Biotec, Inc. (Class Action)	See Line 5 for tentative ruling.
LINE 6	24CV438270	Holman v. Equinix, LLC (Class Action/PAGA)	See Line 6 for tentative ruling.
LINE 7	24CV447769	Loveless v. Essential Behavioral Support, Inc. (Class Action)	See Line 7 for tentative ruling.
LINE 8	25CV467536	Los Gatos LLC et al v. The Town of Los Gatos et al (CEQA)	See Line 8 for tentative ruling.
LINE 9	25CV473118	Berlin Thomas, individually v. Forty Niners Stadium Management Company LLC (Class Action)	See Line 9 for tentative ruling.
LINE 10	25CV483219	Herlinda Estrada et al vs Chattem, Inc., et al.	See Line 10 for tentative ruling.
LINE 11	26CV486031	Tuumamao Esau Jr, II v. Tekberry, Inc. (Class Action / PAGA)	See Line 11 for tentative ruling.
LINE 12			
LINE 13			

Calendar Line 1

Case Name:

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Calendar Line 3

Case Name: *Cramer v. MGE Underground, Inc.*
Case No.: 22CV403855

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiffs' motion for preliminary approval of the settlement. Before the Court is Plaintiffs' motion for final approval of the settlement, and the motion is unopposed. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness exists where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their